

1 **HOUSE OF REPRESENTATIVES - FLOOR VERSION**

2 STATE OF OKLAHOMA

3 2nd Session of the 60th Legislature (2026)

4 COMMITTEE SUBSTITUTE
5 FOR
6 HOUSE BILL NO. 3852

By: Roberts of the House

and

7 **Bergstrom** of the Senate

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9
10 COMMITTEE SUBSTITUTE

11 An Act relating to elections; amending 26 O.S. 2021,
12 Section 2-124, which relates to appointment of
13 inspector, judge, and clerk of election precincts;
14 directing the secretary of the county election board
15 to make appointments every two years; requiring
16 submission of nominees list with two times the number
17 of county precincts; modifying procedure in case of
18 insufficient nominees; limiting appointment of
19 nominees outside list provided by county central
20 committee; directing the Secretary of the State
21 Election Board to provide certain written
22 notification; amending 26 O.S. 2021, Section 2-131,
23 which relates to eligibility for membership on county
24 election board to serve as precinct official;
 requiring precinct officials to swear and affirm oath
 to follow the laws and procedures governing the
 conduct of elections; directing the State Election
 Board to prescribe oath; establishing that lawfully
 removed precinct officials may not serve for period
 of ten years; and providing an effective date.

BE IT ENACTED BY THE PEOPLE OF THE STATE OF OKLAHOMA:

1 SECTION 1. AMENDATORY 26 O.S. 2021, Section 2-124, is
2 amended to read as follows:

3 Section 2-124. A. The secretary of the county election board
4 shall appoint the inspector, judge and clerk of each precinct, to
5 serve terms of ~~four (4)~~ two (2) years each. The secretary's
6 appointments shall be made from the ranks of registered voters
7 within the county pursuant to the requirements of Section 2-123 of
8 this title.

9 B. 1. No later than June 15 of the year following a General
10 Election for Governor or President, the county central committees of
11 the two political parties with the highest number of registered
12 voters in the state, based on the latest January 15 registration
13 report, shall submit a list of nominees equal to ~~three~~ two times the
14 number of precincts in the county to the secretary of the county
15 election board.

16 2. a. The secretary of the county election board shall
17 utilize the list of nominees submitted by each party
18 to appoint one precinct official for each precinct
19 from each party no later than July 1 of the year
20 following a General Election for a Governor or
21 President. If no list is submitted by a county
22 central committee by the specified date, or if the
23 nominees are unable or unwilling to serve, or if the
24 nominees do not meet the eligibility requirements

1 described in Section 2-131 of this title, then the
2 secretary of the county election board shall appoint
3 from the ranks of said party within the county.

4 b. Provided, if the county central committee for a
5 political party submits a list by the specified date,
6 but fails to include the number of nominees required
7 by paragraph 1 of this subsection, then the secretary
8 of the county election board shall still utilize the
9 list of nominees for the appointment of precinct
10 officials if the nominees meet the eligibility
11 requirements described in Section 2-131 of this title.

12 3. No later than thirty (30) business days following the
13 deadline for a county central committee to submit the list of
14 nominees described in paragraph 1 of this subsection, the Secretary
15 of the State Election Board shall provide a written notification to
16 the state central committee of each political party about which of
17 that party's county central committees failed to submit the number
18 of nominees required by law, and cause the letter to be published on
19 the State Election Board website.

20 C. Terms shall begin July 1 of the year following a General
21 Election for Governor or President.

22 D. In the event of a vacancy, the secretary of the county
23 election board shall fill the unexpired term from within the ranks
24

1 of registered voters within the county in the manner described in
2 Section 2-123 of this title.

3 E. The secretary of the county election board shall maintain a
4 current list of all precinct officials, by their registered names
5 and which shall be available for precinct inspection by the public,
6 or provided by electronic means.

7 SECTION 2. AMENDATORY 26 O.S. 2021, Section 2-131, is
8 amended to read as follows:

9 Section 2-131. A. 1. To be eligible for membership on a
10 county election board or to serve as a precinct official, one must
11 be a registered voter of the county in which he or she will serve
12 and demonstrate competence to perform his or her duties.

13 2. No person shall be eligible for membership on a county
14 election board or to serve as a precinct official unless he or she
15 has sworn or affirmed an oath that the person will follow the laws
16 and procedures governing the conduct of elections. Said oath shall
17 be prescribed by the Secretary of the State Election Board.

18 3. No member or alternate member of a county election board, or
19 any precinct official, who has been removed from that office in the
20 manner provided by law, shall be eligible for membership on a county
21 election board, or to serve as a precinct official, for a period of
22 three (3) years from the date of the removal.

1 4. Persons thus qualified and appointed shall be trained in
2 their duties in a manner prescribed by the Secretary of the State
3 Election Board.

4 B. Notwithstanding the provisions of Section 481 of Title 21 of
5 the Oklahoma Statutes or any other provision of law, a secretary of
6 a county election board may temporarily appoint as a precinct
7 official, counter or absentee voting board member, an otherwise
8 qualified person who is related to the secretary within the second
9 or third degree by consanguinity or affinity. Provided, the
10 secretary of the county election board must receive written
11 permission from the Secretary of the State Election Board in order
12 to make such an appointment.

13 SECTION 3. This act shall become effective November 1, 2026.

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15 COMMITTEE REPORT BY: COMMITTEE ON GOVERNMENT OVERSIGHT, dated
16 03/09/2026 - DO PASS, As Amended and Coauthored.
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